

25STCV02577 25STCV02577

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-11

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Case Number: 25STCV02577 Hearing Date: September 11, 2026 Dept: 734

The following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:51 PM on September 9, 2026.

Rule of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No later than 4:00 p.m. on September 10, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges that Defendant breached a lease which permitted Plaintiff to operate an open air market on Defendant's high school premises, and individual Defendants defamed Plaintiff.

Plaintiff Odd Market LLC moves for leave to file a Second Amended Complaint.

TENTATIVE RULING

Plaintiff Odd Market LLC's motion for leave to file a Second Amended Complaint sufficiently complies with California Rules of Court, Rule 3.1324. Conditioned upon Plaintiff paying \$5,000[1] as reasonable attorney's fees and costs incurred by Defendants Los Angeles Unified School District, Gary Garcia and Laura Martinez in preparing and filing their motion for summary judgment directed to the First Amended Complaint set for hearing on October 22, 2026, Plaintiff's motion for leave to file a Second Amended Complaint is GRANTED. Upon payment of such fees and costs to Defendants' counsel, Plaintiff may file a stand-alone copy of the Second Amended Complaint, which will cause the October 22, 2026 to go off-calendar as moot.

Defendants may object to the sufficiency of the amended pleading by way of appropriate law and motion directed to the Second Amended Complaint. Generally, the validity of the proposed amendment is not considered in determining whether

leave to amend is proper; rather, a demurrer or other law and motion is the appropriate means of testing the legal sufficiency of the claim. (See *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) Given that the trial date is set for March 1, 2027, there does not appear to be any prejudice which justifies denial of leave to amend.

Defendants' objections to the Declaration of Donna Etemadi are OVERRULED in their entirety. The statements in the declaration will be considered as articulation as to the propriety of the proposed amendment. (*Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290.)

[1] Code Civ. Proc. Code § 473(a) provides in pertinent part: "The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; . . ."

The Court is aware that \$5,000 does not represent the entirety of attorney's fees incurred in bringing the motion for summary judgment. However, some of the work that went into preparing the summary judgment motion as to the First Amended Complaint can presumably be used for a future summary judgment motion directed to the Second Amended Complaint. The Court does not intend to award Defendants the entirety of their attorney's fees motion as if Defendants were a prevailing party on the merits, only to compensate them for work which was rendered moot due to the filing of the amended complaint.